

26STCV14169 26STCV14169

County: los-angeles

Division: Civil Law and Motion

Department: 510

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Case Number: 26STCV14169 Hearing Date: September 3, 2026 Dept: 510

No.

16 - Strategic Funding Source, Inc. v. Edward Duane Bird

Plaintiff Strategic Funding Source,

Inc.'s Motion to Strike Answer

Plaintiff Strategic Funding Source, Inc. moves to

strike Defendant Edward Duane Bird's answer filed on June 22, 2026.

A party may move

to strike portions of pleadings that are "not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Code Civ.

Proc., § 436(b).)

Plaintiff argues that the answer's

"lack-of-information" denials are improper because they act as general denials to a verified complaint. The Court disagrees. Under Code of Civil Procedure section 431.30(d), "If the complaint is verified . . . the denial of the allegations shall be made positively or according to the information and belief of the defendant." Defendant is permitted to assert lack of information in his answer.

Plaintiff also argues that Defendant's answer

is defective because it is not verified. "When the complaint is verified, the answer shall be verified." (Code Civ.

Proc., § 446.) The Court agrees and will strike Defendant's answer on this basis.

Disposition

Plaintiff Strategic Funding Source, Inc.'s motion
to strike Defendant's answer is granted with leave to amend.

The

Court hereby strikes Defendant Edward Duane Bird's answer filed on June 22, 2026. Defendant is to file an
amended verified answer within 10 days.